



Family Income Supplements Act 1970

1970 CHAPTER 55

An Act to provide for the payment of a new benefit for certain families with small incomes; and for purposes connected therewith. [17th December 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purposes of this Act a family shall consist of the following members of a household— Family income supplement.

- (a) one man or single woman engaged, and normally engaged, in remunerative full-time work; and
- (b) if the person mentioned in paragraph (a) above is a man and the household includes a woman to whom he is married or who lives with him as his wife, that woman; and
- (c) the child or children whose requirements are provided for, in whole or in part, by the person or either of the persons mentioned in the preceding paragraphs.

(2) A benefit, to be known as a family income supplement, shall be paid (on a claim duly made thereto) for any family in Great Britain if the weekly amount of its resources, so far as taken into account for the purposes of this Act, falls short of the prescribed amount.

2.—(1) The prescribed amount for any family shall be—

- (a) if the family includes only one child, £15; and
- (b) if the family includes more than one child, £15 plus £2 for each additional child.

Prescribed amount.

(2) Regulations may substitute higher amounts for those for the time being specified in this section.

Amount of
family
income
supplement.

3.—(1) Subject to the following provisions of this section, the weekly rate of a family income supplement shall be one half of the difference between the amounts mentioned in section 1(2) of this Act but shall not in any case exceed £3.

(2) Where the weekly rate would be £0·10 or less the family income supplement shall not be payable.

(3) Where the weekly rate exceeds £0·10 but would not be a multiple of £0·10 it shall be increased to the nearest multiple.

(4) Regulations may vary the proportion and increase the amounts for the time being specified in this section.

Resources
taken into
account.

4.—(1) The resources of a family taken into account for the purposes of this Act shall be the aggregate of the normal gross income of its members, excluding, except where regulations otherwise provide, the income of any child.

(2) For the purposes of this Act a person's normal gross income and the weekly amount thereof shall be calculated or estimated in such manner as regulations may provide; and regulations may, in particular, provide—

(a) for making deductions in ascertaining the amount of any income;

(b) for disregarding the whole or part of the income from any source specified in the regulations; and

(c) for treating capital resources, other than such as may be specified in the regulations, and any income not consisting of money, as equivalent to gross income of such amount as may be so specified.

Claim
to and
payment
of family
income
supplement.

5.—(1) Any claim to a family income supplement shall be made to the Secretary of State and any family income supplement shall be paid by him.

(2) Where a family includes both a man and a woman the claim shall, except where regulations otherwise provide, be made by them jointly and any sums payable by way of the supplement shall be receivable by either of them; in any other case the claim shall be made and the sums shall be receivable by the man or woman included in the family.

Determination
of right to,
and amount
of, family
income
supplement.

6.—(1) Any question as to the right to or the amount of a family income supplement shall be referred to and determined by the Supplementary Benefits Commission, whose decision shall be final, subject to the provisions of this Act as to appeals.

(2) Except where regulations otherwise provide—

(a) any such question shall be determined as at the date when the claim to the family income supplement is made; and

- (b) any family income supplement determined by the Commission to be payable shall be payable for a period of twenty-six weeks beginning with that date, and the rate at which it is payable shall not be affected by any change of circumstances during that period.

7.—(1) A person claiming or in receipt of a family income supplement may appeal to the Appeal Tribunal against any determination of the Supplementary Benefits Commission under this Act or a refusal by the Commission to review such a determination (in a case where regulations provide for a review). Appeals.

(2) On an appeal under this section the Appeal Tribunal may confirm the determination appealed against (or, if the appeal is against a refusal to review a determination, confirm the refusal) or substitute therefor any determination which the Commission could have made, and any determination of the Tribunal shall be final.

(3) The Appeal Tribunal for the purposes of this Act shall be such of the Tribunals constituted in accordance with the provisions of Schedule 3 to the Ministry of Social Security Act 1966 (constitution and proceedings of Appeal Tribunals) as under that Schedule has jurisdiction in the case in question. 1966 c. 20.

8.—(1) Notwithstanding any change of circumstances during a period for which a family income supplement is payable for any family, no person who was included in that family at the time the claim to the supplement was made shall be treated during that period as included in any other family, except where regulations otherwise provide. Prevention of double payments and recovery of over-payments.

(2) Regulations may make provision for securing that no family income supplement is paid for any family during any period during which the requirements of any person included in the family are taken into account for the purposes of any benefit under the Ministry of Social Security Act 1966.

(3) Regulations may provide for the recovery of sums paid by way of family income supplement where it is found that the sums were not due and the persons by whom the sums were receivable cannot satisfy the Supplementary Benefits Commission or the Appeal Tribunal that they had disclosed all material facts.

(4) Where any amount is recoverable under regulations made by virtue of the preceding subsection it may, without prejudice to any other method of recovery, be recovered by deduction from any family income supplement or from any benefit under the National Insurance Acts 1965 to 1970, the National Insurance (Industrial Injuries) Acts 1965 to 1969 or the Family Allowances Acts 1965 to 1969.

Family
income
supplement
to be
inalienable.

9. Every assignment of, or charge on, a family income supplement, and every agreement to assign or charge a family income supplement, shall be void; and on the bankruptcy or, in Scotland, on the sequestration of the estate, of a person entitled to a family income supplement the supplement shall not pass to any trustee or other person acting on behalf of his creditors.

Regulations.

10.—(1) Any power conferred by this Act to make regulations shall be exercisable by the Secretary of State.

(2) Regulations may make such provision, in addition to any authorised by any other provision of this Act, as appears to the Secretary of State to be necessary or expedient for carrying this Act into effect, and, in particular, but without prejudice to the generality of the power conferred by this section,—

- (a) for determining the circumstances in which a person is to be treated as being, or as not being, engaged or normally engaged in remunerative full-time work;
- (b) for determining the circumstances in which a person is to be treated as providing or as not providing, in whole or in part, for the requirements of a child;
- (c) for determining the circumstances in which a family is to be treated as being, or as not being, in Great Britain;
- (d) for treating, in such circumstances as may be prescribed by the regulations, a person of or over the age of sixteen as being a child (within the meaning of this Act);
- (e) for the manner in which claims to family income supplement are to be made and dealt with;
- (f) for treating claims to family income supplement made in such circumstances as may be prescribed by the regulations as having been made at such date earlier than that at which they are made as may be so prescribed and for requiring references in this Act to the date of such a claim to be construed accordingly;
- (g) for prescribing the evidence which is to be provided in support of claims to family income supplement;
- (h) for the review by the Supplementary Benefits Commission of determinations under this Act made by the Commission or the Appeals Tribunal;
- (i) for suspending payment of family income supplement pending the determination of questions;
- (j) for extinguishing the right to the payment of any sum by way of family income supplement if payment is not obtained within such period, not being less than

twelve months, as may be prescribed by the regulations from the date on which the right is treated under the regulations as having arisen.

(3) Regulations may make different provision for different classes of case and otherwise for different circumstances.

(4) The power to make regulations shall be exercisable by statutory instrument which, except in the case of regulations under section 2 or section 3 of this Act, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) No regulations shall be made under section 2 or section 3 of this Act unless a draft thereof has been laid before Parliament and approved by each House of Parliament.

11. If any person, for the purpose of obtaining any payment of family income supplement, whether for himself or for some other person, or for any other purpose connected with this Act, False statements.

(a) makes any statement or representation which he knows to be false; or

(b) produces or furnishes, or causes or knowingly allows to be produced or furnished any document or information which he knows to be false in a material particular,

he shall be liable on summary conviction to a fine not exceeding £100, or to imprisonment for a term not exceeding three months, or to both.

12.—(1) Any person authorised by the Secretary of State in Legal that behalf may conduct any proceedings under this Act before proceedings. a magistrates' court although not a barrister or solicitor.

(2) Notwithstanding anything in any Act, proceedings for an offence under this Act may be begun at any time within the period of three months from the date on which evidence, sufficient in the opinion of the Secretary of State to justify a prosecution for the offence, comes to his knowledge, or within the period of twelve months from the commission of the offence, whichever period last expires.

(3) For the purposes of subsection (2) of this section, a certificate purporting to be signed by or on behalf of the Secretary of State as to the date on which such evidence as is mentioned in that subsection came to his knowledge shall be conclusive evidence thereof.

(4) The preceding subsections shall not apply to Scotland, but proceedings in Scotland for an offence under this Act may, notwithstanding anything in section 23 of the Summary Jurisdiction 1954 c. 48. (Scotland) Act 1954, be commenced at any time within the period

of three months from the date on which evidence sufficient in the opinion of the appropriate authority to justify proceedings comes to his knowledge, or within the period of twelve months from the commission of the offence, whichever period last expires ; and for the purposes of this subsection—

- (a) “the appropriate authority” means the Secretary of State or, in the case of proceedings which are not preceded by a report of the facts made by the Secretary of State to the Lord Advocate, means the Lord Advocate ;
- (b) a certificate of the appropriate authority as to the date on which such evidence as is mentioned above comes to his knowledge shall be conclusive evidence ; and
- (c) subsection (2) of the said section 23 (date of commencement of proceedings) shall have effect as it has effect for the purposes of that section.

(5) In any proceedings for an offence under this Act, the wife or husband of the accused shall be competent to give evidence, whether for or against the accused, but shall not be compellable either to give evidence or, in giving evidence, to disclose any communication made to her or to him by the accused during the marriage.

Amendments
of Ministry
of Social
Security
Act 1966.
1966 c. 20.

13.—(1) In section 16(1) of the Ministry of Social Security Act 1966 (prevention of duplication of payments) the following shall be added after paragraph (d):—

“ or

- (e) a family income supplement under the Family Income Supplements Act 1970 ”.

(2) For the purposes of sub-paragraph (2) of paragraph 5 of Schedule 2 to that Act (adjustment of benefit under that Act to normal earnings) the amount that would be a person's net weekly earnings if he were engaged in full-time work in his normal occupation shall be taken to include the weekly amount of any family income supplement which, if he were so engaged, would be payable for the family of which he is a member ; and the weekly amount of any family income supplement actually receivable by him shall be included among the amounts mentioned in sub-paragraph (3) of that paragraph.

(3) In paragraph 25 of that Schedule (disregard of £1 a week of income not mentioned in paragraphs (a) to (f) of sub-paragraph (1)) the following paragraph shall be added at the end of sub-paragraph (1):—

- “(g) any family income supplement under the Family Income Supplements Act 1970 ”.

14. In Schedule 6 of the Administration of Justice Act 1970 the following shall be added at the end of the Schedule : —

“ The Family Income Supplements Act 1970 ”.

Amendment
of Adminis-
tration of
Justice Act
1970.

1970 c. 31.

15. There shall be paid out of moneys provided by Parliament—

- (a) any sums payable by way of family income supplement ;
- (b) any expenses of the Secretary of State attributable to this Act ; and
- (c) any increase attributable to this Act in the sums payable under any other Act out of moneys provided by Parliament.

Expenses.

16.—(1) No family income supplement shall be paid for any period preceding such day as the Secretary of State may by order made by statutory instrument appoint.

Commence-
ment of
family
income
supplement.

(2) An order under this section may (before the day appointed by it) be varied or revoked by a subsequent order thereunder.

(3) A statutory instrument made by virtue of this section shall be laid before Parliament after being made.

17.—(1) In this Act—

“ child ”, except where regulations otherwise provide, means a person under the age of sixteen ;

Interpretation,
short title
and extent.

“ family ” has the meaning assigned to it by section 1(1) of this Act ;

“ regulations ” means regulations under this Act ; and

“ single woman ” means any woman other than one who is a member of the same household as a man to whom she is married or with whom she is living as his wife.

(2) This Act may be cited as the Family Income Supplements Act 1970.

(3) This Act does not extend to Northern Ireland.